

Based on the foregoing, the demurrer is overruled. Defendant shall file and serve an answer by September 14, 2026.

4. M-CV-0098802 Woodcreek-Roseville LTD v. Kiara Jones

Motion to Quash

Defendant moves to quash service of summons pursuant to Code of Civil Procedure section 418.10. Plaintiff has not filed any proof of service of summons declaring service of the summons and complaint has been effective. Defendant's motion is therefore premature and is denied without prejudice.

5. S-CV-0049211 Ferriera, Danielle v. Anderson Merchandisers

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of the Class Action and PAGA Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.)

The court has carefully reviewed and considered the class action and PAGA action settlement agreement, plaintiff's moving papers, and declarations and exhibits submitted

in support thereof. The court determines a sufficient showing has been made that the settlement, the attorneys' fees of \$99,483.33, the litigation costs of \$23,284.86, the settlement administration costs of \$10,950, and the service award of \$12,800 are fair, adequate, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

The court grants final approval of the class action and approves the attorneys' fees, litigation costs, settlement administration costs, and the service award.

Plaintiff shall submit a proposed final judgment to the court for its review. The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **January 12, 2027 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than December 28, 2026.

6. S-CV-0050336 Bal, Gurman v. Amerio, Ashley R

The motion to set aside void judgment and/or voidable judgment and/or equitable relief pursuant to C.C.P. §473(d) is continued to **October 27, 2026 at 8:30 a.m. in Department 32**.

7. S-CV-0050872 Ernst, Cody v. Denham, Michele

Motion for Protective Order

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff's motion for a protective order for an extension of time to respond to defendants' discovery demands is denied as it is supported by insufficient justification. Plaintiff's request for monetary sanctions is likely denied.

Motion to Compel

Defendants Michelle Denham and Lisa Berry move for an order compelling plaintiff to provide responses to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., §§ 2030.290; 2031.300.) Within 30 days of service of notice of entry of this order, plaintiff Cody Ernst shall provide verified responses without objections to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents.